



CHAPTER xi

An Act to regulate the expenditure on capital account and lending of money by the London County Council during the financial period from the first day of April one thousand nine hundred and fifty-two to the thirtieth day of September one thousand nine hundred and fifty-three and for other purposes.
[26th June 1952.]

WHEREAS the borrowing of money by the London County Council (hereinafter referred to as "the Council") for the purposes of expenditure on capital account and of loans to bodies and persons is governed by the London County Council (Finance Consolidation) Act 1912 as amended or extended by subsequent Acts (hereinafter referred to as "the principal Act") and by Acts to be obtained by the Council for regulating such expenditure and loans during the several periods from the first day of April in any year to the thirtieth day of September in the next following year (which periods are in the principal Act and in this Act referred to severally as a "financial period"):

And whereas such expenditure and loans as aforesaid are in relation to the financial period ending on the thirtieth day of September one thousand nine hundred and fifty-two regulated by the London County Council (Money) Act 1951:

And whereas it is expedient that the expenditure of the Council on capital account and the lending of money by them during the financial period from the first day of April one thousand nine hundred and fifty-two to the thirtieth day of September one thousand nine hundred and fifty-three (hereinafter referred to as "the financial period 1952-1953") should be regulated as by this Act provided:

And whereas estimates have been prepared by the various committees of the Council of the amounts which may be required for the purposes of expenditure on capital account and of loans during the financial period 1952-1953 in the execution of the powers and duties respectively delegated to those committees and all those estimates have been considered by the finance committee of the Council and submitted by that committee to the Council and the estimates as so submitted have been adopted by the Council:

And whereas the sums estimated to be so required as aforesaid for expenditure on capital account during the financial period 1952-1953 are set out in Part I of the schedule to this Act:

And whereas the sums estimated to be so required as aforesaid for the purpose of loans by the Council during the financial period 1952-1953 are set out in Part II of the said schedule:

And whereas the further sums which the Treasury in pursuance of subsection (3) of section 8 (Powers as to expenditure or loans in event of insufficiency of specified amounts) of the London County Council (Money) Act 1937 may authorise the Council to expend on capital account or to lend during the financial period 1952-1953 are set out in Part III of the said schedule:

And whereas the sums specified in the said Parts I II and III of the schedule to this Act are to the extent set out in Part IV of the said schedule sums which the Council were by virtue of the said London County Council (Money) Act 1951 authorised to expend or lend but which were not before the first day of April one thousand nine hundred and fifty-two expended or lent:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title and
construction.

1. This Act may be cited as the London County Council (Money) Act 1952 and shall be read and have effect as one with the principal Act.

Interpretation.

2. In and for the purposes of this Act—

“the Council” means the London County Council;

“the financial period 1952-1953” means the financial year and the following six months;

“the financial year” means the period from the first day of April one thousand nine hundred and fifty-two to the

thirty-first day of March one thousand nine hundred and fifty-three both dates inclusive;

“ the following six months ” means the period from the first day of April one thousand nine hundred and fifty-three to the thirtieth day of September one thousand nine hundred and fifty-three both dates inclusive;

“ the principal Act ” means the London County Council (Finance Consolidation) Act 1912 as amended or extended by any subsequent Act; and

“ the schedule ” means the schedule to this Act.

3.—(1) The purposes for which during the financial period 1952–1953 the Council may under the powers of section 4 (Power to expend money on capital account) of the principal Act expend money on capital account shall be the purposes mentioned in the second column of Part I of the schedule.

Expenditure on capital account during financial period 1952–1953.

(2) The sums which during the said period the Council may under the said powers expend on capital account shall as regards the financial year and the following six months respectively be sums which except as by the principal Act otherwise provided shall not exceed those mentioned in the fifth and sixth columns respectively of Part I of the schedule in relation to the said purposes respectively.

4.—(1) The bodies and persons to whom the Council may under the powers of section 7 (Power to lend money to local authorities and others) of the principal Act lend money during the financial period 1952–1953 and who may under those powers borrow from the Council during that financial period shall be the bodies and persons mentioned in the first column of Part II of the schedule.

Loans to bodies and persons during financial period 1952–1953.

(2) The sums which may be so lent and borrowed shall as regards the financial year and the following six months respectively be sums which except as by the principal Act otherwise provided shall not exceed those specified in the second and third columns respectively of the said Part II in relation to such bodies and persons respectively.

5. The sums which the Council may be authorised by the Treasury under the powers of subsection (3) of section 8 (Powers as to expenditure or loans in event of insufficiency of specified amounts) of the London County Council (Money) Act 1937 to expend on capital account or to lend during the financial period 1952–1953 in case the amounts specified in Parts I and II of the schedule or any of those amounts are found to be insufficient shall as regards the financial year and the following six months

Amount of further expenditure and loans which Treasury may authorise in case of insufficiency.

respectively be sums not exceeding in the aggregate the amounts specified in the second and third columns respectively of Part III of the schedule.

Periods for
repayment of
loans to
certain bodies
and persons.

6. Except as otherwise provided by the principal Act any money lent by the Council to bodies and persons in pursuance of powers conferred by the principal Act and this Act shall be repaid to the Council within such period or periods not exceeding sixty years from the date or respective dates of lending the same as the Council with the approval of the Treasury may determine.

Application
of Local
Authorities
Loans Act
1945 and other
enactments.

7. It shall not be lawful for the Council to exercise for the purposes mentioned in this Act the powers of borrowing conferred by the principal Act otherwise than in compliance with the provisions for the time being in force of the Local Authorities Loans Act 1945 and of any orders made under section 1 of the Borrowing (Control and Guarantees) Act 1946 and nothing in this Act shall be deemed to authorise a metropolitan borough council to borrow money otherwise than in compliance with those provisions.

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& 1 ELIZ. 2

London County Council
(Money) Act, 1952

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SCHEDULE

PART I

ESTIMATED REQUIREMENTS FROM 1ST APRIL 1952 TO 30TH SEPTEMBER 1953 FOR CAPITAL EXPENDITURE

Acts for the purposes of which money may be expended (1)	Purposes of expenditure (2)	Particulars in cases in which there was a parliamentary estimate of expenditure		Estimated requirement for year ending 31st March 1953 (5)	Estimated requirement for six months ending 30th September 1953 (6)
		Total parliamentary estimate (3)	Expenditure to 31st March 1952 (approximate) (4)		
1. Metropolis Management Act 1855 and various Acts authorising improvements and works.	Construction widening or improvement of streets for facilitating the passage and traffic between different parts of the administrative county of London and expenditure upon improvements and works authorised by various Acts for which no provision is made elsewhere.	£ *	£ —	£ 397,000	£ 90,000
2. Weights and Measures Act 1878.	Acquisition of site and erection of buildings for weights and measures offices.	*	—	6,000	—
3. Metropolitan Board of Works (Various Powers) Act 1885.	Extension of jetty and erection of new store and office buildings for Woolwich Ferry.	*	—	5,000	1,000
4. Thames Tunnel (Blackwall) Act 1887 and sundry Acts relating to tunnels.	Fluorescent lighting in Blackwall and Rotherhithe Tunnels.	*	—	25,185	1,000
	Carried forward ...			433,185	92,000

SCHEDULE—continued

Acts for the purposes of which money may be expended	Purposes of expenditure	Particulars in cases in which there was a parliamentary estimate of expenditure		Estimated requirement for year ending 31st March 1953	Estimated requirement for six months ending 30th September 1953
		Total parliamentary estimate	Expenditure to 31st March 1952 (approximate)		
(1)	(2)	(3)	(4)	(5)	(6)
	Brought forward ...	£	£	£	£
5. Local Government Act 1888 and sundry Acts relating to bridges.	Reconstruction and widening of Deptford Creek Bridge Acquisition of property and execution of works at Waterloo Bridge. Execution of works at Wandsworth Bridge.	*	—	23,250	—
6. Local Government Act 1888.	Acquisition and adaptation of property in connection with Newington Sessions House.	*	—	3,270	—
7. London County Council (General Powers) Act 1925.	Acquisition of property in connection with widening of Strand.	—	—	80	—
8. London County Council (Vauxhall Cross Improvement) Act 1931.	Acquisition of property and execution of works in connection with street improvements at Vauxhall Cross.	617,000	202,311	123,600	31,700
9. Children and Young Persons Act 1933.	Acquisition of property additions and alterations to and equipment of approved schools and remand homes.	*	—	2,600	—
10. London County Council (General Powers) Act 1934.	Acquisition of property and execution of works in connection with Westferry-road to West India Dock-road improvement.	†145,750	22,925	17,500	300
				3,300	—

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11. Housing Acts 1936 to 1949 and other Acts relating to housing.	Acquisition of property erection of dwellings and other purposes.	*	—	22,285,000	12,000,000
12. London and Middlesex (Improvements &c.) Act 1936 and London County Council (Improvements) Act 1948.	Acquisition of property and execution of works in connection with extension of Cromwell-road.	4,795,000	634,140	49,500	23,500
13. Public Health (London) Act 1936 and various Acts relating to main drainage.	Sludge storage and digestion reorganisation of main pumping machinery provision of new sludge vessel and other purposes.	*	—	900,000	700,000
14. London County Council (General Powers) Act 1937.	Acquisition of property in connection with improvements at Notting Hill-gate and Westminster Bridge-road and the Western-avenue extension between Edgware-road and Marylebone-road.	2,107,000	520,570	90,000	25,000
15. Green Belt (London and Home Counties) Act 1938 Open Spaces Act 1906 and various Acts relating to parks open spaces gardens public walks and pleasure grounds.	Contributions towards the green belt scheme and provision and lay-out of additional open spaces.	*	—	842,000	291,000
16. London County Council (Tunnel and Improvements) Act 1938.	Acquisition of property and execution of works for the improvement of the southern approach to Wandsworth Bridge and for the duplication of Blackwall Tunnel.	†3,933,250	275,070	76,000	37,500
Carried forward			...	24,881,285	13,201,000

SCHEDULE—continued

Acts for the purposes of which money may be expended (1)	Purposes of expenditure (2)	Particulars in cases in which there was a parliamentary estimate of expenditure		Estimated requirement for year ending 31st March 1953 (5)	Estimated requirement for six months ending 30th September 1953 (6)
		Total parliamentary estimate (3)	Expenditure to 31st March 1952 (approximate) (4)		
	Brought forward	£	£	£	£
17. London County Council (General Powers) Act 1939.	Acquisition of property and execution of works for the improvement of the south bank of the river Thames.	†1,702,000	701,600	24,881,285	13,201,000
18. London County Council (Improvements) Act 1939.	Acquisition of property for the improvement of the northern approach to Waterloo Bridge.	2,246,000	506,509	6,400	2,000
19. London Government Act 1939.	Completion of north and south blocks County Hall. Reinstatement of restaurants County Hall. Acquisition and adaption of property for local administrative offices. Reinstatement of and improvements to the Geffrye Museum.	*	—	500	—
		*	—	2,200	—
		*	—	5,100	2,000
		*	—	1,000	—
20. Education Acts 1944 to 1948.	Acquisition of sites execution of works and provision and equipment of schools and of premises for school health service.	*	—	5,024,400	2,500,000
21. National Health Service Acts 1946 and 1949.	Acquisition and adaptation of property provision of and alterations to health centres and nurseries and provision of equipment and vehicles.	*	—	575,000	228,000

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22. Town and Country Planning Act 1947.	Acquisition of property compensation and execution of works.	*	—	1,476,200	700,500
23. London County Council (General Powers) Act 1947.	Erection of concert hall and incidental works.	*	—	145,000	10,000
24. National Assistance Act 1948.	Acquisition of property improvements adaptations erection and equipment of premises.	*	—	310,000	22,000
25. Children Act 1948 ...	Acquisition of property provision of equipment and alterations to accommodation of residential homes and nurseries and temporary reception homes.	*	—	250,000	17,100
26. London County Council (General Powers) Act 1948.	Acquisition of land for improvements at Brompton-road and High Holborn.	1,712,500	48,385	65,000	—
27. Civil Defence Act 1948 ...	Acquisition of sites for training grounds ...	*	—	10,000	—
28. Public Works (Festival of Britain) Act 1949.	Acquisition of land etc. in connection with the Festival of Britain 1951.	*	—	87,500	60,500
29. London County Council (Crystal Palace) Act 1951.	General works of renovation and lay-out of grounds	*	—	8,000	—
30. Any Act ...	To provide for possible expenditure for purposes authorised by Parliament (whether before or during the financial period) not included in the foregoing estimates for which it may be desirable that the Council should have spending power.	*	—	500,000	500,000
				33,352,585	17,243,100

Carried forward ... £50,595,685

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.

† This figure includes the estimated cost of other purposes authorised by the same Act.

SCHEDULE—continued

Brought forward £50,595,685

PART II

AMOUNTS ESTIMATED TO BE REQUIRED FOR LOANS

Bodies and persons to whom money may be lent (1)	During year ending 31st March 1953 (2)	During six months ending 30th September 1953 (3)
31. Metropolitan borough councils.	£ 10,000	£ 10,000
32. Governors or managers of educational institutions (including special and approved schools) committees of school treatment centres governors or committees of voluntary hostels homes and other establishments.	250,000	100,000
33. Sundry persons or bodies of persons under the Housing Acts 1936 to 1949 and the Small Dwellings Acquisition Acts 1899 to 1923 as amended by the Housing Act 1949.	450,000	200,000
Total	710,000	310,000
		£1,020,000

PART III

EXPENDITURE OR LOANS WHICH MAY BE AUTHORISED
BY THE TREASURY BEYOND AMOUNTS SPECIFIED IN
PARTS I AND II OF THIS SCHEDULE

Purposes (1)	During year ending 31st March 1953 (2)	During six months ending 30th September 1953 (3)
34. General enlargement of spending and lending power to provide under Treasury sanction for possible further expenditure for purposes included and possible further loans to bodies and persons mentioned in Parts I and II of this schedule.	£ 500,000	£ 500,000
		£1,000,000

Carried forward £52,615,685

SCHEDULE—continued

Brought forward £52,615,685

PART IV

AMOUNTS INCLUDED IN THE FOREGOING PARTS OF THIS SCHEDULE WHICH WERE AUTHORISED BY VIRTUE OF THE LONDON COUNTY COUNCIL (MONEY) ACT 1951 TO BE EXPENDED OR LENT BUT NOT HAVING BEEN EXPENDED OR LENT BEFORE 1ST APRIL 1952 ARE INCLUDED AGAIN IN THIS ACT.

IN ORDER TO ASCERTAIN THE NET AGGREGATE NEW POWERS OF EXPENDING OR LENDING MONEY CONFERRED BY VIRTUE OF THIS ACT IT IS NECESSARY TO DEDUCT THE FOLLOWING SUMS FROM THE SUMS REFERRED TO IN THE FOREGOING PARTS OF THIS SCHEDULE.

Reference to number of item in a foregoing Part of this schedule	Purposes of expenditure or loan	Amount (approximate)
		£
1	Metropolis Management Act 1855 and various Acts authorising improvements and works.	487,000
2	Weights and Measures Act 1878	6,000
4	Thames Tunnel (Blackwall) Act 1887 and sundry Acts relating to tunnels.	26,185
5	Local Government Act 1888 and sundry Acts relating to bridges.	14,015
6	Local Government Act 1888	113,305
7	London County Council (General Powers) Act 1925.	20,000
8	London County Council (Vauxhall Cross Improvement) Act 1931.	795
9	Children and Young Persons Act 1933 ...	12,480
10	London County Council (General Powers) Act 1934.	3,300
11	Housing Acts 1936 to 1949 and other Acts relating to housing.	15,100,000
12	London and Middlesex (Improvements &c.) Act 1936 and London County Council (Improvements) Act 1948.	73,000
13	Public Health (London) Act 1936 and various Acts relating to main drainage.	1,127,240
14	London County Council (General Powers) Act 1937.	115,000
15	Green Belt (London and Home Counties) Act 1938 Open Spaces Act 1906 and various Acts relating to parks open spaces gardens public walks and pleasure grounds	1,133,000
16	London County Council (Tunnel and Improvements) Act 1938.	113,500
17	London County Council (General Powers) Act 1939.	8,400
18	London County Council (Improvements) Act 1939.	5,000
	Carried forward ...	18,358,220
		£52,615,685

SCHEDULE—continued

Brought forward £52,615,685

Reference to number of item in a foregoing Part of this schedule	Purposes of expenditure or loan	Amount (approximate)
	Brought forward	£ 18,358,220
19	London Government Act 1939	10,800
20	Education Acts 1944 to 1948	4,064,400
21	National Health Service Acts 1946 and 1949	711,815
22	Town and Country Planning Act 1947 ...	2,176,700
23	London County Council (General Powers) Act 1947.	134,905
24	National Assistance Act 1948	297,915
25	Children Act 1948	267,100
26	London County Council (General Powers) Act 1948.	65,000
28	Public Works (Festival of Britain) Act 1949	148,000
30	Any Act	762,340
31	Loans to metropolitan borough councils ...	20,000
32	Loans to governors or managers of educational institutions etc.	304,395
33	Loans to sundry persons under the Housing Acts 1936 to 1949 and the Small Dwellings Acquisition Acts 1899 to 1923 as amended by the Housing Act 1949.	465,435
34	General enlargement of spending and lending power under Treasury sanction.	1,000,000
		<u>£28,787,025.</u>

NET AGGREGATE NEW POWERS OF EXPENDITURE OR LOAN (FOR
THE PURPOSES OF WHICH THE COUNCIL MAY RAISE
MONEY BY BORROWING OR OTHERWISE)

		£	£
For Council	{ For year ending 31st March 1953.	8,231,885	
	{ For six months ending 30th September 1953.	15,366,605	
		<u>23,598,490</u>	
For loans	{ For year ending 31st March 1953.	—	
	{ For six months ending 30th September 1953.	230,170	
		<u>230,170</u>	<u>£23,828,660</u>

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Table of Statutes referred to in this Act

Short title	Session and chapter
London County Council (Finance Consolidation) Act 1912.	2 & 3 Geo. 5. c. cv.
London County Council (Money) Act 1937	1 Edw. 8. & 1 Geo. 6. c. xlviii.
Local Authorities Loans Act 1945	8 & 9 Geo. 6. c. 18.
Borrowing (Control and Guarantees) Act 1946.	9 & 10 Geo. 6. c. 58.
London County Council (Money) Act 1951	14 & 15 Geo. 6. c. xix.

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